Hemant Surana vs Serious Fraud Investigation Office on 1 March, 2023

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 677/2023
HEMANT SURANA
Through: Mr.Neeraj Dev Gaur and
Kumar, Advs.
versus

SERIOUS FRAUD INVESTIGATION OFFICE ..... Respondent
Through: Mr.Anurag Ahluwalia, CG
Mr. Kritagya Kumar Kait
Kaushal Jeet Kait,Advs.
CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
ORDER

% 01.03.2023 CRL.M.A. 5484/2023 in BAIL APPLN. 677/2023 Exemption is allowed subject to all just exceptions.

The present petition has been filed under Section 438 Cr.P.C seeking grant of anticipatory bail in the complaint case bearing CC No.191/2020 titled as "Serious Fraud Investigation Office V. Prabodh Kumar Tiwari & Ors." and prays for the following:

> "a) Pass an order thereby granting regular bail to the Petitioner/ Applicant Shaukat in CC No. 191/2020 titled "Serious Fraud Investigation Office v. Prabodh Kumar Tiwari & Ors" pending before the Ld. Special Judge Companies Act, Dwarka Courts (South West}, New Delhi"

Admittedly, the petitioner was not arrested during the investigation. However, his anticipatory bail application was rejected by the learned ASJ, Special Judge, (Companies Act) Dwarka Courts (South West)/New Delhi vide order dated 29.11.2022, whereby a direction has been issued to the petitioner/accused to appear without fail on the next date of hearing i.e. 28.02.2023.

The petitioner now apprehends that if he appears pursuant to the summons issued against him, he may be sent behind the bars.

Issue notice.

Mr Anurag Ahluwalia learned CGSC accepts notice and seeks time to file the status report.

Let status report be filed within four weeks. List on 10.07.2023.

In the meantime, let petitioner appear through his counsel before the learned Trial Court.

DINESH KUMAR SHARMA, J MARCH 1, 2023 Pallavi